

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index #
Date of filing:

-----X
OSCAR NUNEZ,

Plaintiff designates Bronx
County as the place of trial

Plaintiff,

Basis of the venue is
Locus of occurrence

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ONEIL O. SMITHWICK, POLICE OFFICER BRIAN
TAM, POLICE OFFICER JAMES FOY and JOHN
DOES-POLICE -Police Officers as yet unidentified,

SUMMONS

County of Bronx

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

DEFENDANTS' ADDRESS:

THE CITY OF NEW YORK
100 Church Street, New York, NY 10007

POLICE OFFICER ONEIL O. SMITHWICK – Tax
ID No.: 935768
1035 Longwood Avenue, Bronx, NY 10459

POLICE OFFICER BRIAN TAM – Shield No.:
9424
1035 Longwood Avenue, Bronx, NY 10459

POLICE OFFICER JAMES FOY – Shield No.:
20456
1035 Longwood Avenue, Bronx, NY 10459

PLAINTIFF'S ATTORNEYS:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718) 522-1020

Dated: Brooklyn, New York
June 3, 2020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
OSCAR NUNEZ,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
ONEIL O. SMITHWICK, POLICE OFFICER BRIAN
TAM, POLICE OFFICER JAMES FOY and JOHN
DOES-POLICE -Police Officers as yet unidentified,

Defendants.
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Plaintiff by his attorneys, **RUBENSTEIN & RYNECKI, ESQS.**, complaining of the
defendants herein, upon information and belief, respectfully shows to this Court, and alleges as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, OSCAR NUNEZ**

1. That at all times hereinafter mentioned, plaintiff, **OSCAR NUNEZ**, was and still is a
resident of the County of Richmond, City and State of New York.
2. That all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, was
and still is a municipal corporation, duly organized and existing pursuant to the laws of
the State of New York.
3. That the defendant, **THE CITY OF NEW YORK**, maintains a police force known as the
NEW YORK CITY POLICE DEPARTMENT.

4. That prior hereto on September 10, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK, refused or neglected for more than **(30)** days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
5. That on December 9, 2019, pursuant to the General Municipal Law, Statutory 50-H hearing was held.
6. That on June 22, 2019, and at all times hereinafter mentioned, and upon information and belief, defendant, **THE CITY OF NEW YORK** employed **POLICE OFFICER ONEIL O. SMITHWICK**, as agent, servant and/or employee.
7. That on June 22, 2019, and at all times hereinafter mentioned, and upon information and belief, defendant, **THE CITY OF NEW YORK** employed **POLICE OFFICER BRIAN TAM**.
8. That on June 22, 2019, and at all times hereinafter mentioned, and upon information and belief, defendant, **THE CITY OF NEW YORK** employed **POLICE OFFICER JAMES FOY**.
9. That on June 22, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **OSCAR NUNEZ**, was lawfully present at or near the intersection of Leggett Avenue and Garrison Avenue, in the County of Bronx, City and State of New York.

10. That on June 22, 2019, and at all times hereinafter mentioned and upon information and belief, **POLICE OFFICER ONEIL O. SMITHWICK**, was working within the scope of his employment and authority with defendant, **THE CITY OF NEW YORK**.
11. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **THE CITY OF NEW YORK**, was the owner of a 2016 Ford motor vehicle bearing New York State license plate number HKM8370.
12. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **THE CITY OF NEW YORK**, was the owner of a 2016 Ford motor vehicle bearing vehicle identification number 1FAHP2H80GG155675.
13. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **THE CITY OF NEW YORK**, controlled the aforesaid motor vehicle.
14. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **THE CITY OF NEW YORK**, managed the aforesaid motor vehicle.
15. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **THE CITY OF NEW YORK**, maintained the aforesaid motor vehicle.
16. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **THE CITY OF NEW YORK**, serviced the aforesaid motor vehicle.
17. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **THE CITY OF NEW YORK**, repaired the aforesaid motor vehicle.
18. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **POLICE OFFICER ONEIL O. SMITHWICK**, was the operator of a 2016 Ford motor vehicle bearing New York State license plate number HKM8370.

19. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **POLICE OFFICER ONEIL O. SMITHWICK**, was the operator of a 2016 Ford motor vehicle bearing vehicle identification number 1FAHP2H80GG155675.
20. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **POLICE OFFICER ONEIL O. SMITHWICK**, controlled the aforesaid motor vehicle.
21. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **POLICE OFFICER ONEIL O. SMITHWICK**, managed the aforesaid motor vehicle.
22. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **POLICE OFFICER ONEIL O. SMITHWICK**, maintained the aforesaid motor vehicle.
23. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **POLICE OFFICER ONEIL O. SMITHWICK**, serviced the aforesaid motor vehicle.
24. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **POLICE OFFICER ONEIL O. SMITHWICK**, repaired the aforesaid motor vehicle.
25. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **POLICE OFFICER ONEIL O. SMITHWICK**, operated the aforesaid motor vehicle within the scope of his employment with defendant, **THE CITY OF NEW YORK** and THE NEW YORK CITY POLICE DEPARTMENT.
26. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **POLICE OFFICER ONEIL O. SMITHWICK**, operated the aforesaid motor vehicle with the knowledge of the defendant-owner **THE CITY OF NEW YORK** and THE NEW YORK CITY POLICE DEPARTMENT.

27. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **POLICE OFFICER ONEIL O. SMITHWICK**, operated the aforesaid motor vehicle with the permission of the defendant-owner **THE CITY OF NEW YORK** and THE NEW YORK CITY POLICE DEPARTMENT.
28. That on June 22, 2019, and at all times hereinafter mentioned, defendant, **POLICE OFFICER ONEIL O. SMITHWICK**, operated the aforesaid motor vehicle with the consent of the defendant-owner **THE CITY OF NEW YORK** and THE NEW YORK CITY POLICE DEPARTMENT.
29. That on June 22, 2019, and at all times hereinafter mentioned, defendant **POLICE OFFICER BRIAN TAM** and defendant **POLICE OFFICER JAMES FOY** were passengers in the vehicle operated by defendant, **POLICE OFFICER ONEIL O. SMITHWICK** and owned by the defendant-owner **THE CITY OF NEW YORK** and THE NEW YORK CITY POLICE DEPARTMENT.
30. That on June 22, 2019, and at all times hereinafter mentioned, Leggett Avenue at or near the intersection with Garrison Avenue, in the County of Bronx, City and State of New York was and still is a public roadway and/or highway used extensively by the public in general.
31. That on June 22, 2019, the plaintiff, **OSCAR NUNEZ**, was the operator of a 2016 Suzuki motorcycle.
32. That on June 22, 2019, the motor vehicle owned by defendant, **THE CITY OF NEW YORK** and operated by defendant, **POLICE OFFICER ONEIL O. SMITHWICK**, while in the course of his employment with the defendant, **THE CITY OF NEW YORK**,

came into contact with the plaintiff **OSCAR NUNEZ** and plaintiff's motorcycle, at the abovementioned location.

33. That on June 22, 2019, the motor vehicle owned by defendant, **THE CITY OF NEW YORK** and operated by defendant, **POLICE OFFICER ONEIL O. SMITHWICK**, while in the course of his employment with the defendant, **THE CITY OF NEW YORK**, violently struck the plaintiff **OSCAR NUNEZ** and plaintiff's motorcycle, at the abovementioned location.
34. That the above-stated occurrence and the results thereof were in no way due to any negligence on the part of the plaintiff contributing thereto, but was caused by the negligence of the defendants in the ownership, operation, management, maintenance and control of the motor vehicle; in operating same without due regard to the rights and safety of the plaintiff; in operating said motor vehicle in a manner which unreasonably endangered the plaintiff; in failing to properly steer, guide, manage and control the vehicle; in operating same at a rate of speed greater than was reasonable and proper at the time and place of the occurrence; in failing to apply the brakes or slow down or stop in such a manner as would have prevented the occurrence; in failing to have made adequate and timely observation of and respond to conditions; in failing to observe signs and signals prevailing at the time and place of the occurrence; in failing to keep a proper look-out when controlling the vehicle; in failing to properly maintain the vehicle according to law; in failing to give adequate and timely signal, notice or warning; in operating the motor vehicle in violation of the traffic rules, regulations, statutes and

- ordinances in such cases made and provided; and in being otherwise careless, reckless and negligent in the ownership, maintenance, operation and control of the motor vehicle.
35. That by reason of the foregoing and the negligence of the said defendants, this plaintiff, **OSCAR NUNEZ**, sustained serious, severe, and permanent injuries to his limbs and body, still suffers and will continue to suffer for some time, great physical and mental pain and serious bodily injury; became sick, sore, lame and disabled and so remained for considerable length of time.
36. That by reason of the wrongful, negligent and unlawful actions of the defendants, as aforesaid, the plaintiff, **OSCAR NUNEZ**, sustained serious injuries as defined in the Insurance Law of the State of New York, and has sustained economic loss greater than basic economic loss as defined in said Insurance Law.
37. That by reason of the foregoing and the negligence of the said defendants, this plaintiff, **OSCAR NUNEZ**, is informed and verily believes his aforesaid injuries are permanent and that he will permanently suffer from the effects of his aforesaid injuries and he will be caused to suffer permanent embarrassment and continuous pain and inconvenience.
38. That by reason of the foregoing, this plaintiff, **OSCAR NUNEZ**, was compelled and did necessarily require medical aid and attention and did necessarily pay and become liable therefore, for medicines and upon information and belief, the plaintiff will necessarily incur similar expenses.
39. That by reason of the foregoing, the plaintiff, **OSCAR NUNEZ**, has been unable to attend to his usual activity in the manner required.

40. That by reason of the wrongful, negligent and unlawful actions of the defendants, as aforesaid, the plaintiff, **OSCAR NUNEZ**, was severely injured, bruised and wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.
41. This action falls within one or more of the exceptions set forth in CPLR §1602.
42. That as a result of the defendants' negligence as aforesaid, this plaintiff, **OSCAR NUNEZ**, has sustained damages both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, OSCAR NUNEZ

43. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "42" inclusive with the same force and effect as if more fully set forth at length herein.
44. That on June 22, 2019, and at all times hereinafter mentioned, was lawfully present at or about the intersection of Leggett Avenue and Garrison Avenue, in the County of Bronx, City and State of New York was and still is a public roadway and/or highway used extensively by the public in general.
45. That on June 22, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **OSCAR NUNEZ**, was assaulted and falsely arrested by defendants, **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-Police Officers** as yet

unidentified, who were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**, at the aforementioned location.

46. That on June 22, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.
47. That on June 22, 2019, and at all times hereinafter mentioned and upon information and belief the defendants, **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-Police Officers** as yet unidentified, who assaulted and falsely arrested the plaintiff, **OSCAR NUNEZ**, were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**.
48. That on June 22, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and false arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.
49. That as a result of the aforesaid assault and false arrest and confinement, plaintiff, **OSCAR NUNEZ**, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries. By the reason of the foregoing, the plaintiff, **OSCAR NUNEZ**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF OSCAR NUNEZ**

50. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "49" inclusive with the same force and effect as if more fully set forth at length herein.
51. That the defendant, **THE CITY OF NEW YORK**, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-Police Officers** as yet unidentified, who assaulted and falsely arrested and violated the civil rights of the plaintiff, **OSCAR NUNEZ**.
52. That the defendant, **THE CITY OF NEW YORK**, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-Police Officers** as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.
53. By the reason of the foregoing, the plaintiff, **OSCAR NUNEZ**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF OSCAR NUNEZ**

54. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "53" inclusive with the same force and effect as if more fully set forth at length herein.

55. That on June 22, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-**
Police Officers as yet unidentified, were working within the scope of their employment when they, without justification and without probable cause, arrested and imprisoned the plaintiff **OSCAR NUNEZ**.
56. That on June 22, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.
57. That as a result of the aforesaid false arrest and confinement, plaintiff, **OSCAR NUNEZ**, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.
58. By the reason of the foregoing, the plaintiff, **OSCAR NUNEZ**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF OSCAR NUNEZ**

59. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "58" inclusive with the same force and effect as if more fully set forth at length herein.
60. That on June 22, 2019, and at all times hereinafter mentioned and upon information and belief, defendants **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-**

Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff **OSCAR NUNEZ**.

61. That the defendants, **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-**
Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.
62. By the reason of the foregoing, the plaintiff, **OSCAR NUNEZ**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF OSCAR NUNEZ**

63. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "62" inclusive with the same force and effect as if more fully set forth at length herein.
64. That the defendant, **THE CITY OF NEW YORK**, including but not limited to defendants **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-Police Officers** as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff, **OSCAR NUNEZ** through their actions.

65. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, **OSCAR NUNEZ**
66. That as a result of said intentional and negligent acts, the plaintiff, **OSCAR NUNEZ**, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.
67. By reason of the foregoing, the plaintiff, **OSCAR NUNEZ**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF OSCAR NUNEZ**

68. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "67" inclusive with the same force and effect as if more fully set forth at length herein.
69. That on June 22, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-**
Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.
70. That on June 22, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-**

Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, **OSCAR NUNEZ**.

71. That on June 22, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff, **OSCAR NUNEZ** sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.
72. By reason of the foregoing, plaintiff, **OSCAR NUNEZ**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A EIGHTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF OSCAR NUNEZ**

73. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "73" inclusive with the same force and effect as if more fully set forth at length herein.
74. The defendant, **THE CITY OF NEW YORK**, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, **OSCAR NUNEZ**.
75. The defendant, **THE CITY OF NEW YORK**, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-**
Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

76. The defendant, **THE CITY OF NEW YORK**, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.
77. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-Police Officers** as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.
78. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was aware that these individual defendants, including but not limited to **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-Police Officers** as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.
79. As a direct and proximate result of this unlawful conduct, the plaintiff, **OSCAR NUNEZ**, sustained the damages hereinbefore alleged.

**AS AND FOR AN NINTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF OSCAR NUNEZ**

80. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "79" inclusive with the same force and effect as if more fully set forth at length herein.

81. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.
82. That the defendant, **THE CITY OF NEW YORK**, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to **POLICE OFFICER ONEIL O. SMITHWICK, POLICE OFFICER BRIAN TAM, POLICE OFFICER JAMES FOY and JOHN DOES-Police Officers** as yet unidentified, herein-above alleged.
83. By the reason of the foregoing, the plaintiff, **OSCAR NUNEZ**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, **OSCAR NUNEZ**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **First** Cause of Action; plaintiff, **OSCAR NUNEZ**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, **OSCAR NUNEZ**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, **OSCAR NUNEZ**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, **OSCAR NUNEZ**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, **OSCAR NUNEZ**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Court on the **Sixth** Cause of Action; plaintiff, **OSCAR NUNEZ**, demands judgment both compensatory and exemplary in an amount

exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, **OSCAR NUNEZ**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eight** Cause of Action; plaintiff, **OSCAR NUNEZ**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
June 3, 2020

Yours, etc.,

Robert Mijuca

ROBERT MIJUCA, ESQ.

RUBENSTEIN & RYNECKI, ESQS.

Attorneys for Plaintiff

OSCAR NUNEZ

16 Court Street Suite 1717

Brooklyn, New York 11241

(718) 522-1020

ATTORNEY'S VERIFICATION

ROBERT MIJUCA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner at **RUBENSTEIN & RYNECKI**, attorneys of record for Plaintiff, **OSCAR NUNEZ**, in the action within. I have read the annexed **COMPLAINT**, and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: Brooklyn, New York
June 3, 2020

Robert Mijuca
ROBERT MIJUCA, ESQ.